

HOLLINGSWORTH VANE LLP
Attorneys at Law
555 South Flower Street, Suite 3100, Los Angeles, California

February 21, 2025

BY EMAIL

Ms. Odette Marchbanks
Sharpe Alderton LLP
Counsel for VAA interiors + architecture

Re: Ardsley Financial Group — Corbin Tower headquarters, Levels 12–19
VAA Project 632588 (Culver City series)
WITHDRAWAL OF NOTICE OF CLAIM

Dear Ms. Marchbanks,

Ardsley Financial Group hereby withdraws, in its entirety, its notice of claim of November 12, 2024 against VAA interiors + architecture.

1. Documents produced.

On January 21, 2025 you produced, and on February 3, 2025 Mr. Villanueva authenticated, the following:

- (a) VAA's letter of April 6, 2011 to Dana Truscott recommending against deletion of Specification Section 09 05 61;
- (b) Ardsley's written directive of May 17, 2011, signed by Ms. Truscott, directing the deletion, recording it as owner-directed and made over VAA's written recommendation, recording Ardsley's reliance on Prewitt Building Science, and accepting responsibility for future flooring performance issues arising from slab moisture;
- (c) ASI-031 dated May 19, 2011, issued on that written direction; and
- (d) Ardsley's letter of October 8, 2013, signed by Marcus Threadgill, applying the May 17, 2011 direction to the Level 19 pantry failure, funding that remediation at \$88,400 and expressly making no claim against VAA.

2. Authenticity.

Ardsley does not dispute the authenticity of any produced document. Ardsley has reviewed the certificate of authentication dated February 3, 2025 and has no objection to it. We note that Ms. Truscott's May 17, 2011 directive was addressed on Ardsley letterhead and copied to Ardsley's own facilities manager, and that Mr. Threadgill's October 8, 2013 letter is likewise an Ardsley instrument.

3. Why the claim was brought.

Ardsley's construction correspondence for this project did not survive its 2017 platform consolidation. Ms. Truscott retired in 2018 and Mr. Threadgill retired in 2021; neither remains with the company. The documents in Ardsley's possession were Finish Schedule Revision 4 and the Kestenbaum report. On those documents the claim was supportable. On the complete record it is not.

4. Effect.

The demand of **\$2,150,000** is withdrawn. Ardsley will fund the remediation of Levels 12 through 17 itself. Ardsley makes no claim against VAA interiors + architecture, its principals, employees or insurers, in connection with the flooring assembly on Levels 12 through 19 at Corbin Tower, and does not intend to assert one.

5. A closing observation.

Our client asked us to convey the following. Ardsley was told in writing in April 2011 what would happen, chose the credit and the schedule, said so in writing in May 2011, and said so again in writing in October 2013. That the company subsequently lost its own record of having said it is Ardsley's failure and not VAA's.

Very truly yours,

Curtis Enbright

Curtis Enbright

Partner, Hollingsworth Vane LLP

cc: Renata Silverio, Director of Risk Management, Ardsley Financial Group

Sylvia Brannigan, AIA, VAA interiors + architecture

Grant Ipswich, Northmark Design Insurance